Attorney Preconsultation Packet

Garrett Baxley – Turner / CTS Joint Venture / Google Data Center Project

Prepared for consultation on May 22, 2026

Urgency: severance response deadline in four days. The severance agreement should be reviewed before any signature, counteroffer, or waiver of claims. The immediate decision is whether to sign, negotiate, request an extension, or preserve claims before the deadline expires.

1. First 60 Seconds – What to Say Before Anything Else

> ***I need to start with the urgent issue: I have four days left to respond to a severance package, and I have not signed it. Before we go deep into the evidence, I need to know whether signing would waive or impair any claims. The employer's stated reason was that I was not doing work. I have extensive contemporaneous work product and communications that appear to contradict that explanation. I want your help identifying the strongest legal theory, the filing deadlines, the correct respondent entities, and the evidence you need first.***

2. Correct Case Framing

- Primary framing: retaliation / pretextual termination / severance review.
- Secondary framing: HR governance, compliance/process concerns, access restrictions, role diminishment, and construction/JV operational complexity.
- ADA framing: do not overstate it. Treat ADA/accommodation as a limited but important notice factor, not the whole case, unless the attorney sees stronger ADA facts after reviewing the documents.
- FMLA/leave framing: conditional only. Ask whether any facts triggered leave rights, but do not lead with it unless the severance agreement or medical timeline makes it material.
- Whistleblower/safety framing: conditional. Ask if HR/compliance/safety concerns in the construction environment support protected activity, but do not overclaim without counsel.

3. Core Facts the Attorney Needs Immediately

Issue	Fact
Employer ecosystem	Turner Construction / CTS JV involving Turner, Clayco, TWC, and Source Building Group; GC context for Google data center project.
Scale	Turner is approximately 20,000 employees; this was a sophisticated enterprise/JV construction environment.
Role	HR-related role supporting onboarding, recruiting, intern program, HR process, communication, and operational work.
Stated reason	Employer said, in substance, that Garrett was "not doing work."
Rebuttal	ZIP/Drive contain contemporaneous work product, communications, trackers, decks, flyers, reviews, and

	reconstruction documents.
Urgent issue	Four days remain to respond to severance package; need release/waiver review before signing.
Best theory	Pretext: protected or disputed activity followed by role restrictions/increased scrutiny and termination under a work-performance rationale contradicted by evidence.

4. Fast Evidence Audit Completed

- Reviewed extracted ZIP inventory: 225 total files were present in the uploaded Turner ZIP.
- Fast text extraction covered 147 text-bearing files: DOCX, PDF, XLSX, PPTX, EML, and TXT. This does not include screenshot-only image text unless the text was also present in a document.
- The file set strongly supports a work-product rebuttal. It contains onboarding materials, intern trackers, recruiting flyers, HR/process reviews, emergency-response/crisis governance work, data-center public-post documentation, and evidence reconstruction documents.
- Important limitation: several high-value quotes may exist only in screenshots, phone logs, Teams exports, or Google Drive files not text-extracted in this pass. Bring the original ZIP and Google Drive link, but lead with the evidence index below.

5. Evidence Buckets to Lead With

Severance package: Bring first. Attorney must review release, waiver, non-disparagement, confidentiality, cooperation, return-property, arbitration, restrictive covenant, and revocation/extension terms.

Termination rationale: Any document, voicemail, email, or HR note showing the stated reason. Exact words matter.

Work product rebuttal: CTS onboarding checklist, intern program tracker, recruiting flyer audit, HR work-summary docs, crisis governance docs, data-center documentation.

Protected/process concerns: Emails or messages where Garrett asked for support, raised communication/process issues, asked to be reinforced as central HR hub, or flagged being worked around.

Access/authority restrictions: Teams status instructions, access limitations, reporting-line issues, being bypassed, responsibility shifted without handoff.

Assignment memo: Any memo/order showing assignment term through 11/28/2029. This is not automatically a contract claim, but it may affect damages/reliance/settlement posture.

Witnesses/comparators: People who saw work product, were on emails, knew about access restrictions, or received different flexibility/access treatment.

6. Quote-Level Evidence Already Found in the Text-Bearing Files

Use these as leads, not as final trial quotes until the attorney reviews originals and metadata. Exact spelling/capitalization should be preserved from the source files.

Work-product rebuttal: “Garrett reported being terminated and told he was not doing work.”

Source lead: HRDOS_Work_Product_Evidence_Record_Garrett_Baxley_2026-05-12.docx; HR_Crisis_Governance_Research_Work_Product_Report.docx

Confidential context disclosure: “What I’m sharing isn’t an excuse, and it isn’t a request for special treatment. It’s context.”

Source lead: Garrett_EEOC_Evidence_Reconstruction_MASTER_Cumulative_Wave7.docx

Confidential context disclosure: “I’m asking that this stay between us. I’m trusting you with something I haven’t trusted a workplace with before.”

Source lead: Garrett_EEOC_Evidence_Reconstruction_MASTER_Cumulative_Wave7.docx

Communication/support concern: “It’s similar to the email a while back that I’m having trouble with communication and the more that we can reinforce me as the central hub at CTS the better it’ll be for all of us...”

Source lead: Garrett_EEOC_Evidence_Reconstruction_MASTER_Cumulative_Wave7.docx; Stage_2_Broadened_Search_Findings_and_Missing_Evidence.docx

Performance framing after support request: “The very next response was I hear you, but I would like to have another conversation because there are some gaps...”

Source lead: Stage_2_Broadened_Search_Findings_and_Missing_Evidence.docx

Performance/pretext timing: “Not a single word of performance was mentioned prior to my comment about the bottleneck.”

Source lead: Garrett_EEOC_Evidence_Reconstruction_MASTER_Cumulative_Wave7.docx; Stage_2_Broadened_Search_Findings_and_Missing_Evidence.docx

Chain-of-command bypass: “Corina mentioned that she went to Jordyn for something this evening. Didn’t loop me in or ask me (Jordyn is my employee).”

Source lead: Stage_2_Broadened_Search_Findings_and_Missing_Evidence.docx

Chain-of-command request: “My only ask is that you loop me or if at all possible go through me and that way I can go through Jordyn...”

Source lead: Stage_2_Broadened_Search_Findings_and_Missing_Evidence.docx

Intern rollout defense: “The specific scheduling action was not directly handed off to Garrett before the deadline.”

Source lead: Intern_Rollout_Termination_Evidence_Review.docx

Intern rollout response: “No - I did not get it scheduled... my understanding was that you were still taking the lead on scheduling it.”

Source lead: Intern_Rollout_Termination_Evidence_Review.docx

Direct handoff request: “If something needs to shift or you need me to cover a specific action item, please just communicate that directly...”

Source lead: Intern_Rollout_Termination_Evidence_Review.docx

Ethics/compliance alignment: “For anything tied to ethics, compliance, near misses, or subcontractor expectations it is important that the message is aligned with project leadership.”

Source lead: Stage_2_Broadened_Search_Findings_and_Missing_Evidence.docx

7. Critical Gaps / Do Not Forget These

- Severance agreement itself: not found in the extracted text. Bring it first.
- Exact written termination reason: bring any termination letter, HR email, voicemail transcript, meeting notes, or severance cover letter.
- Assignment memo through 11/28/2029: text search found assignment-memo discussions and a Sydney memo reference, but the specific Garrett 11/28/2029 document was not located in the extracted text pass. Bring the original if you have it.
- Ross quote about managers not usually getting the option until after first 30 days: not located in extracted text pass. If this exists in a screenshot, Teams message, or memory, bring the original screenshot/export.
- Richard public comment about Teams understanding: not located in extracted text pass. Bring screenshot, witness names, date, and who was present.
- Any medical/accommodation notice: keep it measured. Bring only the cleanest document showing notice/context. Do not make ADA the headline unless counsel advises it.
- Company iPad/device/property communications: bring voicemail, texts, emails, and return-property instructions. Do not wipe, alter, or delete anything before attorney advice.
- Google Drive files: if Drive contains newer exports, Teams screenshots, or severance docs, give attorney a controlled index rather than a data dump.

8. Legal Reference Points to Ask About

Retaliation: EEOC states protected activity includes communicating with a supervisor or manager about discrimination, answering questions in an investigation, and requesting disability accommodation. EEOC also recognizes increased scrutiny and making work more difficult as possible retaliation depending on facts. Source: EEOC, Retaliation, current public guidance.

Time limits: EEOC public guidance lists 180 days to file a charge, potentially extended by state law. Ask counsel what deadline applies in Texas and whether any severance deadline changes strategy.

ADA: Treat as a limited notice/accommodation issue unless attorney sees stronger facts. Ask whether confidential context disclosure or flexibility-related discussions triggered interactive-process obligations.

FMLA: DOL states eligible employees of covered employers can take job-protected leave for qualifying reasons, including a serious health condition that makes the employee unable to perform job functions. Ask only if your timeline and tenure satisfy eligibility.

OSHA/whistleblower: Ask whether HR/compliance/safety concerns in a construction/data center environment implicate OSHA whistleblower or other protected reporting deadlines.

Severance waiver: Ask whether the agreement releases federal/state claims, whether deadlines/revocation rights apply, whether to request extension, and whether to negotiate language preserving agency charge rights.

9. Questions to Ask the Attorney

1. Can you review the severance first and tell me whether signing would waive claims?
2. Given the facts, what is the strongest legal theory: retaliation, ADA/accommodation, FMLA, whistleblower, breach/assignment memo, defamation, or something else?
3. Which entity or entities should be named: Turner, CTS JV, Clayco, TWC, Source, or multiple respondents?
4. What deadlines control EEOC, TWC, OSHA, NLRB, or other filings?
5. Is the four-day severance deadline negotiable, and should we request an extension?
6. What are the top 10 documents you want first from the ZIP/Drive?
7. Should we send a litigation hold or preservation letter?
8. Does the assignment memo through 11/28/2029 matter for damages, reliance, or leverage?
9. What should I avoid saying to the company before counsel reviews the severance?
10. Is this a contingency, hourly, hybrid, or limited-scope matter?

10. Meeting Order

1. Severance deadline and agreement review.

2. Termination reason and exact words used.

3. Timeline of protected/process concerns and adverse actions.

4. Work product rebuttal: show 10 strongest deliverables only.

5. Entity/JV control and correct respondent analysis.

6. Deadlines and next 72-hour action plan.

11. One-Sentence Case Theory

Clean version: I was terminated from an HR-related role on a large Turner/Clayco/TWC/Source CTS joint venture tied to a Google data center project under a “not doing work” rationale, but I have extensive contemporaneous HR and operational work product showing otherwise; after raising communication/process/support concerns and giving limited accommodation-related context, I experienced role friction, scrutiny, and termination, and I need counsel to evaluate severance waiver risk, pretext, retaliation, proper entities, and filing deadlines.

12. Source Notes

- Internal audit source: /mnt/data/Turner-20260522T023724Z-3-001.zip, extracted locally for text-bearing file review.
- Prompting/legal-AI uploaded materials emphasize giving sufficient context, using role + context + instruction, asking for sources, and avoiding confidential/privileged data dumps in public AI tools.
- Official legal references to verify with attorney: EEOC Retaliation page; EEOC ADA employee rights guidance; DOL FMLA page; OSHA whistleblower complaint guidance.
- This packet is not legal advice. It is an organization aid for attorney consultation.